

## Access Development and Permitting Process Outline

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| <b>Final</b>                                                                                                     |                                                                                                                                          |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                                                                                                                                                                                                                                                                                                        |
| <b>I. EARLY PROJECT DEVELOPMENT: Preliminary scoping of new access project</b>                                   |                                                                                                                                          |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                                                                                                                                                                                                                                                                                                        |
|                                                                                                                  | <b>Steps</b>                                                                                                                             | <b>Process for Completion</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | <b>Information and Resources</b>                                                                                                                                                                                                                                                                                                       |
| A.                                                                                                               | <b>Outline project need, purpose and description, and estimate initial project budget. Determine project size and specific location.</b> | <p>The first step in providing new water access is to determine market demand -- how many access points are needed and where they should be located. This can be accomplished through an inventory of existing sites as well as a survey of users asking where improved access is needed. This information should be taken into account when determining the number, size and location of new access sites. Once the needs for new access have been determined, identify the best way of meeting those needs.</p> <p>To begin the consultation process as you develop an access project, it is essential to describe the specific project location. In many instances, specific latitude and longitude coordinates are helpful. There are a variety of online tools available to help specify project location.</p>    | <a href="http://ngmdb.usgs.gov/">http://ngmdb.usgs.gov/</a><br><a href="http://www.pasda.psu.edu/">http://www.pasda.psu.edu/</a><br><a href="http://www.fish.state.pa.us/accessplan.htm">http://www.fish.state.pa.us/accessplan.htm</a><br><a href="http://www.fish.state.pa.us/county.htm">http://www.fish.state.pa.us/county.htm</a> |
| B.                                                                                                               | <b>Consider and conduct early consultations, as needed, to properly scope project.</b>                                                   | At this very initial phase, advice may be needed from experts, such as County Watershed Managers, to help prepare for preliminary site selection and planning.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | <a href="http://pacd.org/your-district/find-your-district/">http://pacd.org/your-district/find-your-district/</a>                                                                                                                                                                                                                      |
| <b>II. PRELIMINARY SITE SELECTION AND PLANNING: Gathering information to develop the most successful project</b> |                                                                                                                                          |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                                                                                                                                                                                                                                                                                                        |
|                                                                                                                  | <b>Steps</b>                                                                                                                             | <b>Process for Completion</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | <b>Information and Resources</b>                                                                                                                                                                                                                                                                                                       |
| A.                                                                                                               | <b>Identify natural and cultural resources and related concerns</b>                                                                      | There is a lot of information about a new access project that needs to be collected before going to design. Complete familiarity with the project site is essential and will require going into the field to evaluate sites as well. Collecting this information ahead of time can save a lot of work later. Following are some of the things to consider: land uses adjacent to the project site (including servicing roads), water depth and fluctuation, fish and wildlife, environmental and historical conditions and presence of protected species. Take historical and environmental considerations into account. The existence of wetlands, historical artifacts and protected species may preclude the development of an access site.                                                                         |                                                                                                                                                                                                                                                                                                                                        |
|                                                                                                                  | <b>1) Complete Wetland Identification</b>                                                                                                | <p>Wetlands are protected by both state and federal regulations and are important to identify early in the planning process. General information, including a <i>Clues to Wetland Identification</i> factsheet, can be found on DEP's website.</p> <p>Although PAMAP, LiDAR and infrared imagery can more accurately show the presence of wetlands, use of this tool requires a GIS mapping system and some specialized skills.</p>                                                                                                                                                                                                                                                                                                                                                                                    | <a href="http://www.portal.state.pa.us/portal/server.pt/community/wetlands/10635/fact_sheets_publications/554347">http://www.portal.state.pa.us/portal/server.pt/community/wetlands/10635/fact_sheets_publications/554347</a><br><a href="http://www.dcnr.state.pa.us/topogeo/pamap/">http://www.dcnr.state.pa.us/topogeo/pamap/</a>   |
|                                                                                                                  | <b>2) Run PA Natural Diversity Inventory (PNDI) search</b>                                                                               | <p>The PNDI is the main source of information utilized by DEP during the permit application review process for the identification and protection of species and resources of special concern. Running a PNDI search helps to identify potential impacts and minimize impacts to endangered and threatened and special concern species and resources, (i.e. plant and animal species classified as rare, tentatively undetermined or candidate as well as other taxa of conservation concern, significant natural communities, special concern populations (plants) and unique geologic features) in the Commonwealth of Pennsylvania.</p> <p>The PNDI search results will also provide specific recommendations for consultation with permitting and coordinating agencies necessary to address potential impacts.</p> | <a href="http://www.naturalheritage.state.pa.us/">http://www.naturalheritage.state.pa.us/</a>                                                                                                                                                                                                                                          |

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|             | <b>3) Run Cultural Resources Geographic Information System (CRGIS) search</b>                                        | <p>CRGIS is a map-based inventory of the historic and archaeological sites and surveys stored in the files of the Bureau for Historic Preservation (BHP). Run a CRGIS search to identify historical and cultural resources that may be affected by your project. Web access to all of the historic resource data is open to the public. Access to archaeological site locations and detailed site information is restricted and password protected and will be granted to qualified individuals (for planning and archeological purposes) through the CRGIS website. New sites are added to the CRGIS database on a consistent basis. Review of projects that are run through a CRGIS search are evaluated based on known and also potential resources.</p> <p>CRGIS is the first step in project planning, but there may be additional impacts beyond the CRGIS search.</p> | <a href="https://www.dot7.state.pa.us/ce/default.asp">https://www.dot7.state.pa.us/ce/default.asp</a>                                                                                                                                                                                                                                                                                                                                                                       |
|             | <b>4) Evaluate other site selection criteria (e.g. road accessibility, utility service)</b>                          | <p>At this step project managers should think about the other factors for selecting the best project site. In particular, road accessibility and the presence of utilities are critical considerations.</p> <p>Regarding roads, project managers should evaluate: Is there an existing access road to the site? Will an access road need to be developed? Will a Road Occupancy Permit be required? (Consult with the Township or municipal Road Manager or the local PennDOT office; they will be able to advise you on permitting requirements.)</p> <p>Regarding utilities, coordination with utility companies may be needed to locate service corridors and existing access to the project site. The PA One Call System will facilitate this process.</p>                                                                                                               | <p>Township/municipal Road Manager</p> <p>PennDOT local office<br/> <a href="http://www.dot.state.pa.us/Internet/Bureaus/pdBHSTE.nsf/BHSTEHomepage?OpenFrameset&amp;Frame=main&amp;src=Permits?readform">http://www.dot.state.pa.us/Internet/Bureaus/pdBHSTE.nsf/BHSTEHomepage?OpenFrameset&amp;Frame=main&amp;src=Permits?readform</a></p> <p>PA One Call System:<br/> <a href="http://www.pa1call.org/POCS/index16.aspx">http://www.pa1call.org/POCS/index16.aspx</a></p> |
| <b>B.</b>   | <b>Develop preliminary design or concept drawing</b>                                                                 | The design/construction process is largely based on the type of access being developed and the source of funds for construction. The key is to develop the access infrastructure appropriate to the need and site conditions. In general the more extensive the development, the higher the cost and the difficulty of the permitting and consultation processes. The Pennsylvania Fish & Boat Commission's Technical Guidance Program is a great resource for assistance with the construction process.                                                                                                                                                                                                                                                                                                                                                                     | <a href="#">Bureau of Engineering &amp; Property Services 814-359-5152 (request info about the Technical Guidance Program for Boat Access)</a>                                                                                                                                                                                                                                                                                                                              |
| <b>C.</b>   | <b>Coordinate with property owners to secure accessibility (via easement, etc)</b>                                   | Once a site is judged suitable for a new access point, based on both the in-office and in-field evaluations, action may be taken to acquire the property if it is not already secured. Generally there are several ways of gaining control of the property including purchase, lease, easement, gifts and condemnation. Many project managers are able to work with public agencies including municipalities to provide access.                                                                                                                                                                                                                                                                                                                                                                                                                                              | <a href="http://conserveland.org/modeleasesments">http://conserveland.org/modeleasesments</a>                                                                                                                                                                                                                                                                                                                                                                               |
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| <b>III.</b> | <b>PRE-APPLICATION: Proactively seeking guidance to resolve issues and address necessary permitting requirements</b> |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
|             | <b>Steps</b>                                                                                                         | <b>Process for Completion</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                | <b>Information and Resources</b>                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| <b>A.</b>   | <b>Review results for potential issues, required consultations and permitting needs.</b>                             | Make arrangements for required coordinating and regulatory agency consultations identified in Preliminary Site Selection and Planning process. The PNDI search will identify agency coordination needed to resolve issues. Having a clear understanding of the required agency interactions and permits early can help project managers move more smoothly through the planning process.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |

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| 1)                                                                                                            | <b>Coordinate with regulatory agencies (DEP, CCD) and others identified by PNDI and CRGIS</b>                        | Applicants are urged to contact DEP to schedule a pre-application conference. These meetings improve the communication between the potential applicant and DEP staff. Although a pre-application conference requires an investment of time, the results often include improved applications submitted by applicants and a better understanding of the project by DEP staff. Be prepared to provide specific information in order to receive specific guidance. | DEP Regional Offices<br><a href="http://www.portal.state.pa.us/portal/server.pt/community/regional_resources/13769">http://www.portal.state.pa.us/portal/server.pt/community/regional_resources/13769</a><br><br>County Watershed Managers<br><a href="http://pacd.org/your-district/find-your-district/">http://pacd.org/your-district/find-your-district/</a> |
| 2)                                                                                                            | <b>Coordinate with appropriate entity for public road access and road occupancy permitting</b>                       | The road access evaluation and consultation during the preliminary site selection and planning phase may have identified the requirement of a road occupancy permit.                                                                                                                                                                                                                                                                                           | Township/municipal road Manager<br><br>PennDOT local office<br><a href="http://www.dot.state.pa.us/Internet/Bureaus/pdBHSTE.nsf/BHSTEHomepage?OpenFrameset&amp;Frame=main&amp;src=Permits?readform">http://www.dot.state.pa.us/Internet/Bureaus/pdBHSTE.nsf/BHSTEHomepage?OpenFrameset&amp;Frame=main&amp;src=Permits?readform</a>                              |
| 3)                                                                                                            | <b>Make PA One call and coordinate with utility companies to locate service corridors and access to project site</b> | PA One Call may be necessary to coordinate with utility companies to locate service corridors and access into your project site.                                                                                                                                                                                                                                                                                                                               | <a href="http://www.pa1call.org/POCS/index16.aspx">http://www.pa1call.org/POCS/index16.aspx</a>                                                                                                                                                                                                                                                                 |
| <b>IV. Final Site Selection and Planning: Making the commitment to move forward</b>                           |                                                                                                                      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                |                                                                                                                                                                                                                                                                                                                                                                 |
|                                                                                                               | <b>Steps</b>                                                                                                         | <b>Process for Completion</b>                                                                                                                                                                                                                                                                                                                                                                                                                                  | <b>Information and Resources</b>                                                                                                                                                                                                                                                                                                                                |
| A.                                                                                                            | <b>Reassess all collected information to confirm the site selected for the project</b>                               | If all has proceeded smoothly to this point, then the project is ready to proceed to permitting and implementation.<br><br>If all has not proceeded smoothly, there may be fundamental issues with the selected site and unavoidable natural and/or cultural resource conflicts. At this point, a new site may need to be considered.                                                                                                                          |                                                                                                                                                                                                                                                                                                                                                                 |
| B.                                                                                                            | <b>Finalize project scope and design</b>                                                                             | Complete final scope of proposed project, including preliminary design plans and construction drawings and map with project location.                                                                                                                                                                                                                                                                                                                          |                                                                                                                                                                                                                                                                                                                                                                 |
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| <b>V. PERMIT APPLICATIONS AND APPROVALS / PROJECT IMPLEMENTATION: Processes necessary to complete project</b> |                                                                                                                      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                |                                                                                                                                                                                                                                                                                                                                                                 |
|                                                                                                               | <b>Steps</b>                                                                                                         | <b>Process for Completion</b>                                                                                                                                                                                                                                                                                                                                                                                                                                  | <b>Information and Resources</b>                                                                                                                                                                                                                                                                                                                                |
| A.                                                                                                            | <b>Obtain required permits:</b>                                                                                      | In Pennsylvania various state agencies are involved in permitting for new access projects. Listed below are potential permits and related information and resources that may be required to complete the respective permitting processes.                                                                                                                                                                                                                      |                                                                                                                                                                                                                                                                                                                                                                 |
| 1)                                                                                                            | <b>Request to Initiate Consultation (BHP)</b>                                                                        | Submit a "Request to Initiate Consultation in Compliance with State History Code and Section 106 of the National Historic Preservation Act" to the PA Historic & Museum Commission.                                                                                                                                                                                                                                                                            | <a href="http://www.portal.state.pa.us/portal/server.pt/community/review_process/5071">http://www.portal.state.pa.us/portal/server.pt/community/review_process/5071</a>                                                                                                                                                                                         |

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| 2)        | <b>GP2 or Individual Ch 105 permit</b>                                                | <p>In most cases the GP-2 General Permit (General Permit BDWW-GP-2 Small Docks and Boat Launching Ramps) will be needed to create a new access site.</p> <p><b>***Note: The following conditions prohibit use of GP-2 and projects would require an individual Ch. 105 permit: a) Known historic, cultural or archeological sites published PA Inventory of Historic Places or the National Register of Historic Places; b) Sites identified in National Registry of Natural Landmarks; c) Areas within 100 feet of designated wild National or State Scenic Rivers system; d) Construction activities in trout stocked waters from 3/1 - 6/15 and wild trout streams from 10/1-12/31 unless written approval obtained from PAFBC; e) Projects impacting state or federal species of special concern; f) Exceptional value waters (including EV wetlands) listed in Ch 93; and g) Projects requiring excavation of mudflats in the tidal waters of the Delaware River.</b></p> | <a href="http://www.elibrary.dep.state.pa.us/dsweb/Get/Document-77336/4000-BK-DEP0341.pdf">http://www.elibrary.dep.state.pa.us/dsweb/Get/Document-77336/4000-BK-DEP0341.pdf</a>                                                                                                                                                            |
| 3)        | <b>Erosion and Sedimentation Plan</b>                                                 | <p>Projects involving construction, land development, and earthmoving may require permits by County Conservation Districts. PA Code Title 25 Chapter 102 requires all earthmoving projects in the Commonwealth to develop an erosion and sediment pollution control plan and implement best management practices for the control of sediment pollution during construction. In addition, the PA Department of Environmental Protection (DEP) requires a National Pollution Discharge Elimination System (NPDES) permit for earthmoving activities exceeding five acres.</p>                                                                                                                                                                                                                                                                                                                                                                                                    | <a href="http://www.elibrary.dep.state.pa.us/dsweb/View/Collection-9428">http://www.elibrary.dep.state.pa.us/dsweb/View/Collection-9428</a>                                                                                                                                                                                                |
| 4)        | <b>Township or State Highway Occupancy Permit</b>                                     | <p>Site evaluation and consultation during the preliminary site selection and planning phase may have identified the requirement of a Township or State Highway Occupancy permit.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | <p>Township/municipal road Manager</p> <p>PennDOT local office<br/> <a href="http://www.dot.state.pa.us/Internet/Bureaus/pdBHSTE.nsf/BHSTHomepage?OpenFrameset&amp;Frame=main&amp;src=Permits?readform">http://www.dot.state.pa.us/Internet/Bureaus/pdBHSTE.nsf/BHSTHomepage?OpenFrameset&amp;Frame=main&amp;src=Permits?readform</a> </p> |
| <b>B.</b> | <b>Implement project consistent with permits and approvals</b>                        | <p>The permit issued for new access projects may include specific performance stipulations (e.g. prohibited construction work within the water during spawning season, reseeding of disturbed acres, etc). These performance best management practices must be incorporated into construction management.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                                                                                                                                                                                                                                                                                                            |
| <b>C.</b> | <b>Complete Pre- and Post-Construction Notifications as directed in the permit(s)</b> | <p>The permits issued may also direct project managers to provide advance notification when projects are implemented and/or follow-up information upon project completion.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |                                                                                                                                                                                                                                                                                                                                            |